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MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Motion filed on April 20, 2026.

MOVING PARTY: Plaintiff Armen Mirzakhanians

RESPONDING PARTY: Defendant FCA US LLC

NOTICE: OK.

RELIEF REQUESTED: Plaintiff requests \$72,360 in fees, consisting of \$47,670 in attorney fees, a \$23,835 enhancement based on a requested 1.5 multiplier, and \$855 in legal-assistant fees, plus \$1,805.71 in costs and expenses.

RULING: Granted in part. The Court awards \$39,260 in attorney fees and \$1,782.04 in costs and expenses.

BACKGROUND

On May 20, 2025, Plaintiff Armen Mirzakhanians (Plaintiff) filed this Song-Beverly Consumer Warranty Act action against Defendants FCA US LLC (FCA), San Fernando Motor Company, and Does 1 through 30 concerning a 2024 Chrysler Pacifica. Plaintiff alleges causes of action for fraud and deceit, breach of written and implied warranties under the Magnuson-Moss Warranty Act, breach of written and implied warranties under the Song-Beverly Consumer Warranty Act, violations of Business and Professions Code sections 17200 and 17500, negligence, and strict liability.

On October 15, 2025, Plaintiff filed a motion for sanctions concerning FCA's alleged noncompliance with Code of Civil Procedure section 871.26. Plaintiff withdrew the motion on January 21, 2026.

On February 20, 2026, Plaintiff filed a Notice of Settlement of Entire Case stating that the settlement was conditional.

On April 20, 2026, Plaintiff filed the instant Motion and Memorandum of Costs. On August 28, 2026, FCA filed an Opposition and the Declaration of Hector E. Zurita-Cruz. On August 31, 2026, Plaintiff filed a Reply and the Declaration of Hovanes Margarian in support of the Reply.

LEGAL STANDARD

Under Civil Code section 1794, subdivision (d), a prevailing buyer is entitled to an award of reasonable attorney fees and expenses. California courts apply the "lodestar" approach to determine what fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) This inquiry "begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 (*PLCM Group*)). From there, the "lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (*Ibid.*) Relevant factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*)).

The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784.) Where the prevailing practice is for attorneys to bill separately for paralegal services, reasonable paralegal expenses are awardable as part of the attorney fees. (*Guinn v. Dotson* (1994) 23 Cal.App.4th 262, 269-270.) A plaintiff may recover reasonable attorney fees based on actual time expended and "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

DISCUSSION

Attorney Fees

Plaintiff requests \$72,360 in fees, consisting of \$47,670 in attorney fees, a \$23,835 enhancement based on a requested 1.5 multiplier, and \$855 in legal-assistant fees. (Mot. at p. 5.) FCA argues that counsel's hourly rates should be reduced to \$495. (Opp. at p. 3.) FCA further requests reductions of at least 35 percent to certain challenged categories and the striking of other challenged entries. (Opp. at pp. 4-7.) FCA requests that the positive multiplier be denied and that a negative multiplier be applied. (Opp. at pp. 7-10.) FCA ultimately requests an award of no more than \$21,469.50 in attorney fees. (Opp. at p. 10.)

Plaintiff represents that the settlement permits recovery of reasonable attorney fees and costs by noticed motion. (Mot. at p. 5.) FCA does not argue that Plaintiff lacks entitlement to any fee award and instead affirmatively requests a reduced award of attorney fees and costs. (Opp. at p. 10.) Accordingly, the Court addresses the reasonableness of the requested fees and costs.

1. Reasonable Hourly Rates

Margarian seeks \$650 per hour for work performed through June 30, 2025, and \$750 per hour thereafter. (H. Margarian Decl. ¶¶ 11, 17.) Ter-Saakyan seeks \$700 per hour. (Ter-Saakyan Decl. ¶ 7.) Legal assistant Elmira Oganyan seeks \$150 per hour. (H. Margarian Decl. ¶ 56.)

A reasonable hourly rate is the rate prevailing in the community for similar work, and the trial court is the best judge of the value of professional services rendered. (PLCM Group, supra, 22 Cal.4th at p. 1095; Ketchum, supra, 24 Cal.4th at p. 1132.) Rate determinations in other cases, particularly those setting a rate for the plaintiff's attorney, are satisfactory evidence of the prevailing market rate. (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Margarian has practiced law for approximately 19 years and has focused nearly exclusively on automotive litigation. (H. Margarian Decl. ¶ 14.) Ter-Saakyan has more than 16 years of experience handling personal injury, consumer protection, and other civil matters. (Ter-Saakyan Decl. ¶ 3.) Plaintiff submits evidence that courts in other Song-Beverly matters have approved Margarian's requested rates of \$650 and \$750 per hour. (H. Margarian Decl. ¶¶ 18-49.) Plaintiff also submits evidence that courts in other Song-Beverly matters have approved Ter-Saakyan's requested rate of \$700 per hour. (Ter-Saakyan Decl. ¶¶ 9-11; H. Margarian Reply Decl. ¶ 10.)

FCA relies principally on the 2023 Real Rate Report and argues that counsel's rates should be reduced to \$495 per hour. (Opp. at p. 3.) FCA calculates \$33,412.50 for the 67.5 attorney hours claimed before any reduction to the hours. (Opp. at p. 3.) The Court is not persuaded that the broad consumer-goods litigation data in the report supports capping the hourly rate for counsel at \$495 here. The Court finds the requested attorney rates reasonable in light of counsel's experience and the evidence of rate determinations in comparable matters. The Court also finds the \$150 hourly rate requested for Oganyan reasonable.

2. Time Spent on Litigation

Verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication that the records are erroneous. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.)

Plaintiff seeks compensation for 73.2 hours, consisting of 10.8 hours by Margarian, 56.7 hours by Ter-Saakyan, and 5.7 hours by Oganyan, for a starting lodestar of \$48,525. (H. Margarian Decl., Ex. A [Summary of Plaintiff's Attorneys' Fees].) Ter-Saakyan separately verifies his 56.7 billed hours. (Ter-Saakyan Decl. ¶ 4.)

The matter involved section 871.26 disclosures, review of FCA's document productions, mediation and settlement efforts, and a sanctions motion that was later withdrawn. (H. Margarian Decl., Ex. A.) The case did not proceed through depositions, dispositive motion practice, expert discovery, pretrial motions, or witness preparation for trial. (Opp. at p. 2.)

The Court finds reasonable Ter-Saakyan's 3.9 hours reviewing FCA's document productions, consisting of 1.3 hours to review 727 pages and 2.6 hours to review an additional 672 pages. (H. Margarian Decl., Ex. A [8/14/25 and 9/30/25 entries].) The Court likewise finds reasonable the 2.6 hours spent preparing Plaintiff's initial disclosures. (H. Margarian Decl., Ex. A [8/21/25 entry].)

The Court also declines to reduce the time associated with Plaintiff's sanctions motion. FCA argues that the motion was template-based, was never adjudicated, and was withdrawn before the settlement agreement was fully executed. (Opp. at p. 5.) The billing records reflect that the motion was prepared and reviewed on October 15, 2025 and withdrawn on January 21, 2026. (H. Margarian Decl., Ex. A [10/15/25 and 1/21/26 entries].) Plaintiff represents that the matter settled at mediation in October 2025 and that Plaintiff executed the settlement agreement on January 14, 2026. (Reply at p. 7.) The subsequent withdrawal does not establish that the work was unreasonable when performed.

FCA also challenges the 5.7 hours billed by legal assistant Elmira Oganyan at \$150 per hour. (Opp. at p. 6.) Reasonable paralegal services are recoverable as part of an attorney fee award. (Guinn v. Dotson (1994) 23 Cal.App.4th 262, 269-270; Del Biaggio v. Bansen (2026) 121 Cal.App.5th 831, 840-841.) Allowing separately billed paralegal work at a lower rate

promotes the cost-effective delivery of legal services. (Del Biaggio, *supra*, 121 Cal.App.5th at pp. 840-841.) Oganyan billed 5.7 hours for proofreading the revocation letter, lawsuit package, initial disclosures, mediation brief, sanctions motion, billing breakdown, fee motion, and Reply. (H. Margarian Decl., Ex. A [EO entries].) Although FCA characterizes this work as clerical, the entries concern substantive litigation documents and total only 5.7 hours over the course of the action. Plaintiff further explains that delegating proofreading to a legal assistant at a lower rate was more cost-effective than having counsel perform the same work. (Reply at p. 9.) The Court finds the time reasonable and allows the requested \$855 in full.

Fees for preparing and defending a fee motion are recoverable. (Ketchum, *supra*, 24 Cal.4th at p. 1141; see *Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) Plaintiff seeks 14.7 attorney hours totaling \$10,480 for the formal fee-motion stage. (H. Margarian Decl., Ex. A [fee-motion entries].) Given counsel's substantial experience with Song-Beverly fee motions and the recurring nature of the issues presented, the Court finds the time claimed excessive. Although Plaintiff asserts that counsel ultimately spent more time than estimated preparing the Reply, the supplemental declaration does not quantify the additional time actually incurred. (Reply at p. 8; H. Margarian Reply Decl. ¶¶ 1-13.)

Ter-Saakyan also billed one hour on March 30, 2026 to calculate the approximate attorney fees, costs, and expenses. (H. Margarian Decl., Ex. A [3/30/26 entry].) Plaintiff explains that this calculation was undertaken to present the amount of fees and costs to FCA for purposes of informal resolution before filing the Motion. (Reply at p. 7.) The Court finds the one hour reasonably incurred for that separate purpose and does not reduce it.

The Court has reviewed Plaintiff's billing records and reduces the bills as follows:

Date/Category Timekeeper Hours Billed Hours Allowed/Reason

4/14/25 revocation-delivery check; 5/21/25 filing, CMC, and service administration; 6/6/25 proofs of service; 6/11/25 conformed proof of service; 7/17/25 receipt of production; 8/19/25 reassignment administration; 9/3/25 receipt of production; 2/12/26 change-of-address notice AJT 1.8 0.5 hours allowed. The identified entries reflect checking delivery or filing status, calendaring, organizing service, preparing proofs of service, receiving conformed documents or productions, recording invoices, and notating the file. The Court allows 0.5 hour for the limited attorney review and oversight reflected in the CMC, reassignment, and service-related entries.

5/20/25 lawsuit package; 8/7/25 protective-order review and revisions AJT 1.6 1.1 hours allowed. The Court allows 0.6 of the 0.8 hour billed to finalize the lawsuit package because counsel had separately billed 2.5 hours on May 16 to draft the same Complaint, cover sheet, addendum, and summons. (5/16/25 and 5/20/25 entries.) The Court allows 0.5 of the 0.8 hour billed for the August 7 protective-order work because counsel had separately billed 0.7 hour on July 17 to review FCA's Stipulation and Protective Order. (7/17/25 and 8/7/25 entries.)

8/12/25 presuit-compliance letter HM 0.1 0 hours allowed. Ter-Saakyan separately billed 0.3 hour to prepare the presuit-compliance meet-and-confer letter, while Margarian's entry likewise states that he prepared the same letter rather than reviewed it.

Request for Dismissal (estimated) HM 0.4 0 hours allowed. Margarian seeks 0.4 hour for future preparation of a request for dismissal. The record does not establish that the estimated time has been incurred.

4/10/26 through fee-motion hearing AJT 10.9 3.0 hours allowed. Ter-Saakyan's entries include preparation of the billing breakdown, Motion and supporting declaration, reservation of the hearing, and estimated time to review the Opposition and prepare the Reply. (4/10/26, 4/14/26, 4/15/26, and estimated fee-motion entries.) The Court allows 1.0 hour to prepare the Motion, 1.0 hour to review the Opposition, and 1.0 hour to prepare the Reply.

4/10/26 through fee-motion hearing HM 3.8 1.0 hour allowed. Margarian's entries include review of the billing breakdown and Motion, preparation of his declaration, estimated review of the Reply, and 2.5 estimated hours for preparation for and

appearance at the hearing. ([4/10/26, 4/15/26, and estimated fee-motion entries].) The Court allows 1.0 hour for preparation for and appearance at the hearing.

FCA also seeks a 35 percent reduction to broader categories of prefiling, disclosure-related, and routine preparation work and relies on fee reductions imposed in other Song-Beverly matters involving Plaintiff's counsel. (Opp. at pp. 4-6, 9-10.) FCA's highlighted billing records identify numerous prefiling, meet-and-confer, document-review, and other entries as allegedly excessive or clerical. (Zurita-Cruz Decl. ¶ 3, Ex. A.) The Court is not persuaded that an across-the-board percentage reduction or the reductions imposed on different billing records in other actions should be applied here. The specific reductions above address the repetitive, overlapping, administrative, and excessive time shown by this record.

The total reduction in Ter-Saakyan's time is 9.7 hours, or \$6,790. The total reduction in Margarian's time is 3.3 hours, or \$2,475. The Court makes no reduction to Oganyan's 5.7 hours. The total reduction from the \$48,525 starting lodestar is therefore \$9,265.

3. Multiplier

The lodestar amount "may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum*, supra, 24 Cal.4th at p. 1132.) The purpose of any lodestar enhancement is to approximate market-level compensation for the services performed and is discretionary. (*Ibid.*) "The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-1172.)

Here, Plaintiff argues a 1.5 multiplier is warranted based on the favorable settlement, contingent risk, delay in payment, counsel's skill, and the asserted complexity of automotive litigation. (Mot. at pp. 15-18.) The Court finds that the result obtained does not warrant a multiplier. The case did not involve novel or difficult issues, dispositive motion practice, depositions, expert discovery, pretrial motions, or witness preparation for trial. Plaintiff represents that the matter settled at mediation in October 2025, approximately five months after filing. (Reply at p. 7.) The Court finds the favorable result reflects competent representation rather than uniquely exceptional advocacy. The contingent-risk factor is substantially reflected in the approved rates, which exceed counsel's stated noncontingency rates. (H. Margarian Decl. ¶¶ 16-17; Ter-Saakyan Decl. ¶ 7.) The asserted delay in payment does not warrant an additional enhancement on this record. The Court denies the 1.5 multiplier.

FCA's request for a negative multiplier is also denied. The lodestar approved by the Court, based on actual hours reasonably expended after targeted reductions for administrative, overlapping, duplicative, and excessive entries, already reflects the limited scope and standard nature of this litigation.

After applying the reductions identified above to the \$48,525 starting lodestar, the Court grants Plaintiff's request for attorney fees in the amount of \$39,260, calculated as follows: Margarian, 1.2 hours × \$650 = \$780, plus 6.3 hours × \$750 = \$4,725, for a total of \$5,505; Ter-Saakyan, 47.0 hours × \$700 = \$32,900; and Oganyan, 5.7 hours × \$150 = \$855.

Costs and Expenses

Plaintiff requests \$1,805.71 in costs and expenses, consisting of \$780.96 in filing and motion fees, \$24.75 in electronic filing fees, and \$1,000 in mediation expenses. (Mem. Costs, Worksheet.) FCA does not contest Plaintiff's costs and expenses. (Opp. at p. 1.)

The filing-fee worksheet includes a \$23.67 estimated filing charge for a future Request for Dismissal. (Mem. Costs, Attachment 1g.) The record does not establish that this cost has been incurred. The Court therefore reduces the requested

costs by \$23.67.

The Court awards \$1,782.04 in costs and expenses.

CONCLUSION

The Court GRANTS IN PART Plaintiff's Motion for Attorneys' Fees, Costs, and Expenses. The Court awards \$39,260 in attorney fees and \$1,782.04 in costs and expenses, for a total award of \$41,042.04.

Plaintiff's request for a 1.5 lodestar multiplier is denied. FCA's request for a negative multiplier is denied.